

Response in Opposition to Emergency Stay

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

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Response and position

Calder argues that privilege disputes ordinarily await final judgment and that a stay will delay discovery in the retaliation action.

Calder files this same-day expedited response on April 1 after the emergency motion and before the 5:00 p.m. production deadline. She treats delay as a real cost and confines the response to emergency preservation. This limited filing is not a Rule 21 merits answer, and no order requiring such an answer has issued.

Mohawk and adequacy

The response invokes ordinary postjudgment review but acknowledges that the twenty underlying logged items and attachments would be delivered for the first time before such review.

Calder invokes *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009), and notes that Ashe already holds the complete memorandum and log under protective handling. Cinder Lake answers that the twenty underlying communications, full drafts, work product, and attachments have never been delivered. The panel must decide whether first compelled access to those items remains meaningfully reviewable without treating Mohawk as factually identical.

Disputed clear right

Calder contends the letter's invocation of counsel and remedial measures makes waiver at least debatable, while not identifying a quoted or paraphrased communication.

Calder points to the letter's reference to outside counsel and subsequent remedial measures as a possible use of counsel's work. She contends that the inference makes Cinder Lake's asserted right debatable. At the same time, she does not identify a sentence conveying advice or an employee communication, preserving the central merits question for later briefing.

Scope concerns

Calder emphasizes that original facts, business records, and witness knowledge must remain discoverable even if protected communications are withheld.

Any interim order, Calder argues, should not stop depositions about observed billing practices, requests for ordinary claim records, or questions about nonprivileged business decisions. That limitation aligns with *Upjohn Co. v. United States*, 449 U.S. 383, 389–97 (1981). It keeps the emergency dispute focused on protected material rather than every discovery request sharing the investigation’s subject.

Alternative protection

If relief is granted, Calder agrees that the stay may cover the entire March 25 compelled protected production while permitting nonprivileged source discovery to continue.

Calder's alternative recognizes that the court may preserve all twenty logged items, underlying communications, drafts, work product, the complete memorandum, and attachments without halting depositions or ordinary records. That scope supplies a workable preservation order. It does not concede privilege, waiver error, or mandamus entitlement and does not alter Ashe's prior protected possession of the memorandum and log.

Procedural boundary

This filing responds solely to the emergency stay motion. It is not the Rule 21 merits answer, which is not due absent a separate court order.

The response completes the submissions requested for immediate preservation. No court order has yet required Calder to answer the full test in *Cheney v. U.S. District Court*, 542 U.S. 367, 380–81 (2004), Rule 502(a), or the requested final disposition. Treating this limited opposition as a merits answer would exceed its stated purpose and misstate Calder’s procedural obligations as of April 1.

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